

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/18/26 TIME: 1:30 P.M. DEPT: L CASE NO: CIV2300579

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: MITCHELL FRIEDMAN, ET AL vs. DEFENDANT: TAMALPAIS UNION HIGH SCHOOL DISTRICT, ET AL	
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NATURE OF PROCEEDINGS: 1) MOTION - JUDGMENT ON THE PLEADINGS
2) MOTION - SUMMARY JUDGMENT
3) MOTION - GOOD FAITH SETTLEMENT

RULING

Defendant Joseph Balistreri's ("Defendant") Motion for Summary Judgment on plaintiff Mitchell Friedman, as Guardian ad Litem for Benjamin Harding Friedman's ("Plaintiff") Complaint is DENIED.

Defendant's Motion for Judgment on the Pleadings is also DENIED.

BACKGROUND

Plaintiff filed his Complaint on March 2, 2023, alleging a single cause of action for negligence against Tamalpais Union High School District, Jean Harris, and Joseph Balistreri.

This case arises out of a March 25, 2022, incident in which Benjamin Harding Friedman ("Friedman") was injured while playing football at Tamalpais High School. (Separate Statement of Undisputed Material Facts ("UMF") No. 1.) At the time of the incident, Plaintiff was a high school freshman attending his seventh period P.E. class at Tamalpais High School. (UMF No. 2.) The day of the incident was "student choice" day in defendant Jean Harris's ("Harris") P.E. class. (UMF No. 3.) Plaintiff was part of a group that chose to play football that class. (UMF No. 4.) Plaintiff and Defendant both testified that the game included some level of physical contact. (UMF No. 5.) Plaintiff testified at his deposition that he believed they would play tackle football. (UMF No. 6.) The injury occurred while Plaintiff was playing offense and waiting to receive a pass from the player playing quarterback. (UMF No. 7.) As the ball came towards Plaintiff, he put his hands up to catch the ball. (UMF No. 8.) At the same time, Defendant went to make an interception. (UMF No. 9.) Both Plaintiff and Defendant were going for the ball at the time of

the collision. (UMF No. 10.) Defendant's shoulder impacted Plaintiff's jaw. (UMF No. 11.) Defendant did not intend to hurt or injure Friedman. (UMF No. 12.)

In sum, the parties are teenagers who played football during seventh-period P.E., and Plaintiff was injured in a student-student collision. Plaintiff contends that because football was among the class options, participation in the sport was effectively mandatory.

LEGAL STANDARD – MOTION FOR SUMMARY JUDGMENT

In reviewing a motion for summary judgment, courts must apply a three-step analysis: “(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent's claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue.” (*Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294.) “[T]he initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (*Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal. App.4th 1510, 1519.) A defendant moving for summary judgment or summary adjudication “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action ... cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2).)

“Once the defendant ... has met that burden, the burden shifts to the plaintiff ... to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2).) The plaintiff may not merely rely on allegations or denials of its pleadings to show that a triable issue of material fact exists, but instead, “shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action.” (*Ibid.*) “If the plaintiff cannot do so, summary judgment should be granted.” (*Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal.App.4th 463, 467.)

DISCUSSION – MOTION FOR SUMMARY JUDGMENT

The basis for the Motion is that Plaintiff's claim is barred by the doctrine of primary assumption of the risk.

“When a defendant moves for summary judgment on the basis of implied assumption of the risk, he or she has the burden of establishing the plaintiff's primary assumption of the risk by demonstrating that the defendant owed no legal duty to the plaintiff to prevent the harm of which the plaintiff complains.” (*Patterson v. Sacramento City Unified Sch. Dist.* (2007) 155 Cal.App.4th 821, 826, as modified on denial of reh'g (Oct. 22, 2007).) Determining whether the primary assumption of risk doctrine applies is a legal question to be decided by the court. (*Ibid.*)

To establish a cause of action for negligence, the plaintiff must show that the ‘defendant had a duty to use due care, that he breached that duty, and that the breach was the proximate or legal cause of the resulting injury.’ ” (*Brown v. USA Taekwondo* (2021) 11 Cal.5th 204, 213.) Under the general rule, persons have a duty to use due care to avoid injury to others and may be held liable if their failure to use due care injures another person. (*Hemady v. Long Beach Unified Sch. Dist.* (2006) 143 Cal.App.4th 566, 569, as modified (Oct. 30, 2006).) This is referred to as the “prudent person” standard of care. (*Ibid.*)

However, in *Knight v. Jewett* (1992) 3 Cal.4th 296 (*Knight*) and *Kahn v. East Side Union High School Dist.* (2003) 31 Cal.4th 990, 1004 (*Kahn*), the Supreme Court established an exception to the prudent person standard of care in certain sports settings. (*Ibid.*) This is because dangerous conditions or conduct are often an integral part of the sport itself. (*Ibid.*) To prevent a fundamental alteration of certain sports and to guard against chilling a coach's role or discouraging vigorous participation in sports activities, in some cases, under the primary assumption of risk doctrine, a coach or coparticipant's potential liability is not governed by the prudent person duty of care. Rather there exists a more limited duty of care not to intentionally injure a player or engage in conduct that is so reckless as to be totally outside the range of the ordinary activity involved in the sport. (*Id.*, at p. 570.)

Cases have held this limited duty under the primary assumption of the risk doctrine does not apply to activities in mandatory P.E. classes. (See *Hemady v. Long Beach Unified Sch. Dist.*, *supra*, 143 Cal.App.4th 566 [Student was struck by a golf club in a physical education class during regular school hours, by and through a guardian ad litem sued the school district, the school, and the physical education teacher for negligence. Court of Appeal held that the prudent person duty of care, rather than the limited duty of care applying primary assumption of the risk doctrine to sporting activities, governed student's negligence claim]; see also *Nigel B. v. Burbank Unified Sch. Dist.* (2023) 93 Cal.App.5th 64, 72–73.)

In the case of *Nigel B. v. Burbank Unified School District*, a student at John Muir Middle School was injured in a physical education class during a game of touch football. (*Ibid.*) Because plaintiff's "participation in the physical education class was not voluntary on his part, but rather was required by the middle school's curriculum," the court declined to extend the application of the doctrine to a sports activity that is "part of a mandatory physical education class." (*Ibid.*)

Although Defendant attempts to distinguish the present case from *Nigel B*, the Court finds these are distinctions without difference. For example, Defendant points out that Nigel B. had been bullied by the classmate who injured him, that the ball had been thrown unnecessarily hard, and that although the present fact pattern occurred in a P.E. class, Plaintiff made the choice to play football as part of a "choose your own game" day.

There is no dispute that the incident occurred during a mandatory P.E. class. (See UMF No. 2.) The fact that there was some choice in the activities available during that mandatory P.E. class does not take the fact pattern outside of the *Nigel B.* holding. *Nigel B.* focused on the fact that the class itself was mandatory.

Accordingly, Defendant has not met his initial burden of showing the primary assumption of the risk doctrine bars Plaintiff's claims and the Motion for Summary Judgment is DENIED. The denial of the motion brings the issue out of the pleading stage and into the realm questions of fact to be determined by the jury.

LEGAL STANDARD – MOTION FOR JUDGMENT ON THE PLEADINGS

A motion for judgment on the pleadings "may only be made on one of the following grounds: If the moving party is a plaintiff, that the complaint states facts sufficient to constitute a cause or

causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint.” (Code Civ. Proc., § 438, subd. (c)(1)(A).)

Like a demurrer, a motion for judgment on the pleadings attacks defects disclosed on the face of the pleadings or by matters that may be judicially noticed. (*Alameda County Waste Management Authority v. Waste Connections US, Inc.* (2021) 67 Cal.App.5th 1162, 1173-1174.) A motion for judgment on the pleadings is similar to a demurrer in most respects. (*Ibid.*) Except as provided in the statute governing motions for judgment on the pleadings, the rules governing demurrers apply. (*Ibid.*)

A motion for judgment on the pleadings performs the same function as a general demurrer, and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed. (*Burnett v. Chimney Sweep* (2004) 123 Cal.App.4th 1057, 1064.) “[J]udgment on the pleadings must be denied where there are material factual issues that require evidentiary resolution.” (*Schabarum v. California Legislature* (1998) 60 Cal.App.4th 1205, 1216.) Presentation of extrinsic evidence is not proper on a motion for judgment on the pleadings. (*Burnett, supra*, at p. 1063; *Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999.)

However, admissions and concessions which the parties cannot properly controvert may be properly considered on motion for judgment on pleadings, even if the admission negates an express allegation of the pleadings. (*Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 549, disapproved on other grounds in *Black Sky Capital, LLC v. Cobb* (2019) 7 Cal.5th 156, 165.) Thus, a court may properly grant a motion for judgment on the pleadings based on judicial admissions. (*Bucur v. Ahmad* (2016) 244 Cal.App.4th 175, 186.)

DISCUSSION – MOTION JUDGMENT ON THE PLEADINGS

Defendant brings this Motion on the grounds that the Complaint fails to state facts sufficient to constitute a cause of action because the sole cause of action for negligence is barred by the doctrine of primary assumption of the risk.

To succeed in a negligence action, the plaintiff must show that (1) the defendant owed the plaintiff a legal duty, (2) the defendant breached the duty, and (3) the breach proximately or legally caused (4) the plaintiff's damages or injuries. (*Thomas v. Stenberg* (2012) 206 Cal App.4th 654, 662.)

Code of Civil Procedure section 425.10 requires a statement of facts constituting the cause of action in ordinary and concise language. Code of Civil Procedure section 452 requires liberal construction. California uses an “ultimate facts” standard, negligence may be pleaded in general terms (*Guilliams v. Hollywood Hosp.* (1941) 18 Cal.2d 97; *Rannard v. Lockheed Aircraft Corp.* (1945) 26 Cal.2d 149), but plaintiff must indicate the specific acts or omissions alleged to be negligent.

Here, the allegations are that Plaintiff and Defendant were part of a group of 12 students out of a class of 30, who were playing football while in the presence of their P.E. teacher. (See Compl., ¶ 7.) The Complaint further alleges that during the game, Defendant negligently and carelessly hit

Plaintiff in the head, causing him injury. (*Ibid.*) Finally the Complaint alleges this injury was proximately caused by Defendant's negligence. (*Id.* at ¶ 9.)

This is sufficient to state a cause of action for negligence.

To the extent that Defendant attempts to rely on an affirmative defense raised in his Answer, and not a lack of duty apparent on the face of the Complaint, on a motion for judgment on the pleadings, the Complaint cannot be attacked by reference to matters set forth in the answer. (*Hughes v. W. MacArthur Co.* (1987) 192 Cal.App.3d 951.)

The Motion for Judgment on the Pleadings is DENIED.

Parties must comply with Marin County Superior Court Local Rule 2.10(A)–(B). A party seeking oral argument must notify the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. on the court day before the hearing. Notice may be provided by telephone or in person; direct contact with counsel or the parties is not required. Absent timely notice to the Court and all parties, no oral argument will be permitted except by order. If no party properly requests oral argument, the tentative ruling becomes the order of the Court..

***IT IS ORDERED* Evidentiary hearings are in person in Department L. Routine appearances may be made by video using the link on the Court's website. When your case is called, turn on your camera and ensure the appearing party or lawyer is properly identified on screen.**

***FURTHER ORDERED* Parties are responsible for maintaining a reliable connection and being available throughout the remote hearing. If a party's connection is inadequate, the Court may proceed in that party's absence. Participants determined to be driving during the hearing will be removed from the virtual courtroom. (Yes, this happens).**

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

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PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: SHAWNA SIMS

vs.

DEFENDANT: MARIN GENERAL
HOSPITAL

NATURE OF PROCEEDINGS: 1) MOTION – SEAL
2) MOTION – SEAL
3) MOTION - LEAVE

RULING

Plaintiff filed Motions to seal unredacted declarations on June 15, 2026, and June 17.

Plaintiff's unopposed motions to seal unredacted declarations are GRANTED. The unopposed failure to respond by Defendant is deemed consent. (Cal. Rules of Court, rule 8.54(c); Marin Local Rule Civ. 2.8G.1.)

Plaintiff's motion is therefore GRANTED in its entirety.

Plaintiff's motion to permit representative class members to proceed under pseudonyms is DROPPED as moot considering the stipulation and order signed September 15, 2026.

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